

To Richard McLean
NDIS Number: 430938559
3A Warrigo Street, Sadlier, NSW, 2168

Date: 24/12/2024

Subject: Eviction Notice under the Boarding Houses Act

Dear Richard,

This is an eviction notice requiring you to vacate the property on 6th Jan 2025.

This notice requiring you to vacate the property on 6th Jan 2025 is issued because

- The Registered Proprietor of the property has terminated the Head lease with Aligned Community Care Pty Ltd and that Notice expired on 25/11/2024
 - Aligned Community Care Pty Ltd has issued notice to you on 18/11/2024 to vacate the property by 25/11/2024. The property has not been Vacated by you till today's date 24/12/2024
- The Registered Proprietor of the property had initiated the NCAT proceeding to obtain the vacate possession of the property from Aligned Community Care Pty Ltd –
 - NCAT had made order on 23/12/2024 to terminate the Tenancy Agreement between Aligned Community Care Pty Ltd and the Registered Proprietor immediately and
 - NCAT had made order on 23/12/2024 to Aligned Community Care Pty Ltd to handover the vacated property to Registered Proprietor on the date of termination.
 - NCAT order on 23/12/2024 also made an order that the order for possession is suspended until 6th Jan 2025
- As a consequence of the order made by NCAT on 23/12/2024 – Aligned Community Care Pty Ltd is required to handover vacated property to the Registered Proprietor latest by 6th Jan 2025.
- If the property is not vacated by midnight on 06/01/2025, the Registered Proprietor will initiate a Sheriff eviction. The Sheriff will attend the property to enforce the eviction, and the locks will be changed.

As stated in the above paragraph, by the virtue of the NCAT Order on 23/12/2024, Aligned Community Care Pty Ltd is required to handover vacated property to the Registered Proprietor latest by 6th Jan 2024 and so this notice is issued to you to handover vacated property to Aligned Community Care Pty Ltd by 6th Jan 2024.

This Eviction Notice is issued in accordance with the Boarding Houses Act.

Note : Address of the property is recently changed from 3 Warrigo Street, Sadlier, NSW, 2168 to 3A Warrigo Street, Sadlier, NSW, 2168

It is also noted Aligned Community Care Pty Ltd has previously issued notice to terminate the Lodging Agreement for Tenancy Accommodation with you. You have previously been given a Notice under the Residential Tenancies Act. NCAT dismissed the proceedings on the basis that your occupation of the premises was as a boarder and not a Tenant and the Boarding Houses Act was applicable. Notice to termination was issued to you for the below reason.

- Non payment of Rent
- Serious breach of your responsibility as tenant to treat Aligned Community Care Staff with Courtesy and respect a. Please refer Annexure 2 for Lodging Agreement for Tenancy Accommodation annexed as a part of this notice i. Clause 3.1('C) of the Lodging Agreement for Tenancy Accommodation provides that it is your obligation to Treat Service Provider (Aligned Community Care) staff with courtesy and respect. ii. Your actions listed below is Serious breach of your responsibility to Treat Service Provider (Aligned Community Care) staff with courtesy and respect
 - Death threats made via text message to Disability Service Manager
 - Threats and abuse made to Disability Service Manager, over the phone
 - Recording support staff without their consent
 - Property damage to staff vehicles

Below documents are annexed with this notice

- Notice issued to you on 18/11/2024 to vacate the property by 25/11/2024
- NCAT Order on 23/12/2024 under case William Mahfoud v Aligned Community Care Pty Ltd Case number 2024/00448005 which required Aligned Community Care Pty Ltd to vacate the property by 6th Jan 2024

Sincerely,



Mahendra Giri
Head of Operation
Aligned Community Care
Email: admin@alignedcommunitycare.com.au

Notice Received by Richard McLean

Received date: 18/11/2024

Richard McLean Signature: